

Amendment No. 1 to SB0566

Bailey
Signature of Sponsor

AMEND Senate Bill No. 566*

House Bill No. 1138

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 68-105-105, is amended by deleting subsection (a) and substituting:

(a)

(1) At a dwelling house, public building, school, church, commercial, or institutional building normally occupied within three hundred feet (300') of a blast hole, the responsible blasting firm shall offer the owner or occupant a pre-blast survey at no charge. This requirement applies only in cases where the standard table of distance is exceeded. The blasting firm shall make the offer in writing at least seventy-two (72) hours prior to commencement of the blasting operation. All surveys requested during the offer period must be completed prior to the commencement of the blasting operation. Each survey must document all structural and cosmetic flaws noted at that time.

(2) Each owner or occupant may request, in writing, complete documentation of surveys, including all photographs, from the blasting firm. The blasting firm shall provide the documentation in a timely manner. The cost to an owner or occupant of a residential structure for providing the documentation requested under this subdivision (a)(2) must not exceed fifty dollars (\$50.00).

(3) Subdivisions (a)(1) and (a)(2) do not apply to permanent blasting operations.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.